

satisfy every indifferent man concerning the first point, that this court hath not encroached upon the common law, or any way opposeth the liberties of the Great Charter.

FOR the second point, I would fain know what there wanteth in this court to decypher it to be an ordinary court of judicature which any other court at Westminster hath? It hath judges, ordinary process, officers, a place certain, a continued session in the term time, and day given over from time to time. So you shall find it in the reign of *H. 7.* and *H. 8.* as well as now and then more continual without days of intermission, whereas now the court sitteth ordinarily but two days in the week, the same then sitting, for the most part, every day of the week.

BUT it is objected, that the usual courts of justice do only sit in the term time, and this court sitteth at the king's pleasure, as well in vacation as term; for so it did at Davison's sentence in the reign of queen Elizabeth, and in the great Dutch cause in the reign of our now sovereign; which manifesteth it to subsist rather by extraordinary sovereignty than ordinary course. To this I answer, that the extraordinary prerogative which that court hath, taketh not away the ordinary stability; for the chancellor of England may determine cases in the court of chancery in the vacation time as well as in the term. And the chancellor and lord keeper have ever so done; yet no man will deny the court of chancery to be an ordinary court of justice.

AGAIN, It is objected, that the pleadings in the court and the records thereof are not tied unto any such formality, or preserved with so much care, nor entered upon any adjournment and continuance with so much strictness and diligence, as other courts at Westminster; and therefore it seemeth, that this great court hath rather been as a committee for such great causes as it pleased the king than as a court of ordinary justice, which is ever tied to form, as to the chief principle which giveth it being.